

23CMCV00413 23CMCV00413

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-25

Motion: PLAINTIFF CITY OF COMPTON'S MOTION TO STRIKE THE ANSWER OF DEFENDANT NOVA NOEL ZAKARIAN
DATE: June 25, 2026 TIME: 8:30 A.M.

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Case Number: 23CMCV00413 Hearing Date: June 25, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CITY OF COMPTON,

Plaintiff(s),

vs.

NOVA NOEL ZAKARIAN, an individual; EUSTACIO

HERNANDEZ, an individual; SUSANA HERNANDEZ, an individual; and DOES 1 Through
100, inclusive,

Defendant(s).

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CASE NO: 23CMCV00413

[TENTATIVE] ORDER RE: PLAINTIFF CITY OF COMPTON'S MOTION TO
STRIKE THE ANSWER OF DEFENDANT NOVA NOEL ZAKARIAN

DATE: June 25, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff City of
Compton

Responding Party: None

Notice: OK

Tentative Ruling: Plaintiff's Motion to Strike
Answer is CONDITIONALLY GRANTED.

I.

BACKGROUND

This is an action for abatement, injunction,
equitable relief and civil penalties. Plaintiff City of Compton ("Plaintiff" or

the “City”) alleges that it filed this action to stop an illegal cannabis and narcotics business operating out of the real property located at 1449 E. Compton Blvd., Compton, CA 90221 (the “Property”). Plaintiff alleges that Defendant Nova Noel Zakarian (“Zakarian”) owns the Property and, along with Defendants Eustacio Hernandez (“Eustacio”)[1] and Susana Hernandez (“Susana”), used the Property for the purpose of operating an unlicensed marijuana dispensary and conducting various other illegal narcotics activities.

The City filed the instant action on March 22, 2023 against Zakarian, Eustacio, Susana, and Does 1 through 100, inclusive, alleging causes of action for: (1) Narcotics Abatement (Health and Safety Code Sections 11570, et seq.); (2) Public Nuisance (Civil Code Section 3479, et seq.); (3) Violation of Compton Municipal Code (CMC Chapters 9-24.3); (4) Violation of Compton Municipal Code (CMC Chapters 30-33); (5) Violation of Unfair Competition Law (Business and Professions Code Sections 17200, et seq.); and (6) Violation of MAUCRSA (Business and Professions Code Section 26000, et seq.).

On April 9, 2026, Plaintiff filed the instant Motion to Strike the Answer of Defendant Nova Noel Zakarian.

As of June 22, 2026, no Opposition or Reply has been filed. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties “at least nine court days ... before the hearing” and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal Standard

“The court may, upon a motion made pursuant

to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436.)

B.

Discussion

Plaintiff moves to strike the answer of Defendant Nova Noel Zakarian (“Zakarian”) on the grounds that the Answer is not verified as required by Code of Civil Procedure § 446(a).

Code of Civil Procedure § 446(a)

provides that when a city or public corporation is the plaintiff, the answer shall be verified. (Code Civ. Proc. §446(a).)

Here, Plaintiff is the City of Compton, a municipal corporation, and Defendant Zakarian’s Answer filed on August 29, 2023 is not a verified pleading and thus is subject to being stricken.

Upon review of the docket, the Court notes that Zakarian has not only failed to oppose the instant motion but Zakarian has also failed to appear for at least the last seven hearings spanning over a year in time – from at least January 13, 2025 through the date of this hearing.[2] While the Court understands and notes that the failure to file a properly verified Answer is something which can be easily rectified, the Court is concerned as to Zakarian’s apparent lack of interest in any continued engagement in these proceedings.

III.

CONCLUSION

The

City’s Motion to Strike Answer is **CONDITIONALLY GRANTED**. Zakarian is granted 15 days’ leave to amend. Zakarian’s amended verified answer is ordered filed and served no later than July 10, 2026. Failure to file and serve an amended verified answer as ordered will result in the Court granting Plaintiff’s motion unconditionally and ordering Zakarian’s Answer struck from the record.

An

OSC re: Striking Defendant Zakarian's Answer is set for July 13, 2026 at 8:30 a.m. in Dept. E.

Further,

an OSC re: Entry of Defendant Zakarian's Default is also set for July 13, 2026 at 8:30 a.m. in Dept. E.

The Court

further determines that, given Zakarian's repeated failures to appear as outlined above, Zakarian's in-person appearance at the July 13, 2026 hearings would materially assist in the Court's determination of the proceedings and in the effective management of this case. Pursuant to Code of Procedure § 367.75(b)(3) and Rule of Court 3.672(d)(1), Zakarian is ordered to appear, in person, for the July 13, 2026 hearings at 8:30 a.m. in Dept. E.

Plaintiff

to give notice.

[1] As

the Hernandez Defendants bear the same surname, first names are used for clarity.

[2]

See Minute Orders 1/13/25, 2/24/25, 5/23/25, 7/22/25, 9/22/25, 11/26/25, 1/8/26.

Zakarian's last appearance in this matter was on December 17, 2024. (See Minute Order 12/17/24.)